

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

**Defendant/Counter-Plaintiff/
Third-Party Plaintiff,**

vs.

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

and

**CHERYL PEAKE, in her personal and separate
capacity, and JILL WRIGHT, in her personal
and separate capacity,**

Third-Party Defendants.

_____/

**COLONIAL MANOR'S MOTION FOR SANCTIONS PURSUANT TO
SECTION 57.105, FLORIDA STATUTES**

Pursuant to Florida Statute section 57.105, Plaintiff/Counter-Defendant Colonial Manor MHC Holdings, LLC ("Colonial Manor"), moves for an award of attorney's fees and costs because Defendant/Counter-Plaintiff/Third-Party Plaintiff Lori Skipper ("Defendant" or "Skipper") knew or should have known that her Amended Counter Complaint is not supported by the law or material facts necessary to establish a claim. In support of this Motion, Colonial Manor states:

1. On November 4, 2021, Colonial Manor initiated the instant action by filing a three-count Complaint against Defendant due to Defendant's breach of her Employment Agreement with Colonial Manor.

2. In response, on or about November 23, 2021, Defendant filed a three-count Counterclaim in addition to an Answer to Colonial Manor's Complaint.

3. On December 13, 2021, Colonial Manor filed Plaintiff's Motion to Dismiss Counterclaims.

4. On or about December 27, 2021, Defendant filed an Amended Counterclaim with three counts that were nearly identical to the original Counterclaim filed on November 23, 2021, and failed to resolve multiple procedural and substantive deficiencies noted in Colonial Manor's December 13, 2021 Motion to Dismiss Counterclaims.

5. As a result, on January 7, 2022, Colonial Manor filed Plaintiff's Amended Motion to Dismiss Defendant's Counterclaim ("Amended Motion to Dismiss") due to Defendant's failure to state a claim and procedural deficiencies. Colonial Manor's Amended Motion to Dismiss was set for hearing on February 14, 2022.

6. Following the hearing on Colonial Manor's Amended Motion to Dismiss, Magistrate David P. Caskey recommended that all counts of Defendant's Amended Counterclaim be dismissed with leave to file an amended counterclaim. An Order Adopting and Approving Magistrate's Report and Recommendation was entered on March 21, 2022.

7. Subsequently, on or about March 28, 2022, Defendant filed her second amended counterclaim titled "Amended Counter Complaint" much of which is a regurgitation of prior (and insufficient) allegations of fact and law. In fact, the two counts of the amended pleading are strikingly similar to the prior pleadings that failed to state a claim.

8. Instead, the only substantive addition to the Amended Counter Complaint as compared to previous pleadings is the recitation of approximately six (6) pages of statutes and case law regarding gender discrimination (pursuant to Title VII and Title IX) and Mobile Home Park Lot Tenancies without any relation to specific counts, claims, or facts.

9. In short, Defendant's amended pleading does nothing more than (1) regurgitate her claims pursuant to Chapter 723, Florida Statutes that were addressed in the February 14, 2022 hearing on Colonial Manor's Amended Motion to Dismiss, (2) improperly asserts a claim pursuant to Chapter 723 without complying with conditions precedent to filing suit, and (3) attempts to skirt the procedural deficiencies of her Chapter 760 gender discrimination claims by now alleging gender discrimination pursuant to the Federal Fair Housing Act based on the same set of deficient facts.

10. In addition, Defendant attempts to include two (2) brand new parties to these proceedings – Colonial Manor employees, Cheryl Peake (“Peake”) and Jill Wright (“Wright”), in their personal capacity – but fails to state any specific cause of action against these individuals, in violation of the Florida Rules of Civil Procedure. *See* Fla. R. Civ. P. 1.110(f). Defendant's amended pleading is nothing more than an effort to harass Peake and Wright.¹

11. By filing this Amended Counter Complaint, Defendant continues a pattern of obstruction of this litigation.

¹ Peake and Wright were purportedly “served” with a Summons that was not issued by the Manatee County Clerk of Court or a judge. The summons was apparently drafted and served by an individual, George Yeske, who posed as a process server. Pursuant to Administrative Order 2015-24.2, a process server must be certified, and Mr. Yeske is not a certified process server. In fact, Mr. Yeske is also not licensed to practice law in Florida, though Defendant Skipper's lengthy filings in this case continue to suggest that she is receiving assistance from him.

ARGUMENT

Section 57.105, Florida Statutes, provides, in relevant part:

Upon . . . motion of any party, the court shall award a reasonable attorney's fee, including prejudgment interest, to be paid to the prevailing party in equal amounts by the losing party and the losing party's attorney on any claim or defense at any time during a civil proceeding or action in which the court finds that the losing party or the losing party's attorney knew or should have known that the claim or defense when initially presented to the court or at any time before trial:

- (a) Was not supported by the material facts necessary to establish the claim or defense; or
- (b) Would not be supported by the application of then-existing law to those material facts.

Entitlement to fees pursuant to section 57.105 requires a showing of: (1) a claim or defense; (2) unsupported by the material facts or the application of existing law to those facts; and (3) that at any time during the proceeding, the party and counsel knew or should have known that the claim or defense was unsupported by the material facts or the application of existing law to those facts. *Albritton v. Ferrera*, 913 So. 2d 5, 9 (Fla. 1st DCA 2005). The phrase "supported by the material facts" in section 57.105(1) means that "the party possesses admissible evidence sufficient to establish the fact if accepted by the finder of fact." *Id.* at 8 n.1. A party may be subject to sanctions under section 57.105 if a claim is not dropped or dismissed when it becomes evident it is no longer justiciable. *Id.* at 8.

First and foremost, Defendant's amended pleading fails to comply with Florida Rules of Civil Procedure and impermissibly combines pleadings and lacks any allegations of ultimate fact needed to support the claims for relief. *See* Fla. R. Civ. P. 1.110(b)(2). The pleading is nearly indecipherable and makes blanket assertions that commingle all of Defendant's claims in further violation of the Florida Rules of Civil Procedure. *See* Fla. R. Civ. P. 1.110(f).

Yet, even overlooking these defects, Defendant fails to state a cause of action. It is clear here that Defendant's claims against Colonial Manor are unsupported by the material facts necessary to establish a claim for violation of rights established pursuant to Chapter 723, Florida Statutes or gender discrimination pursuant to the Fair Housing Act. Moreover, Defendant has failed to comply with the conditions precedent to bringing her claims in a circuit court action.

WHEREFORE, Colonial Manor requests that this Court award attorney's fees and costs and such other sanctions as the Court may deem appropriate in its favor.

In accordance with section 57.105(4), Florida Statutes, this motion is being served, but not filed, on the date set forth in the certificate of service below.

/s/ Jordann Wilhelm

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document was served via U.S. mail on this 19th day of April, 2022, to Defendant, Lori Skipper, at 900 9th Ave. E., Lot 211, Palmetto, Florida 34221.

/s/ Jordann Wilhelm

JORDANN WILHELM